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Question 80

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Flag question

One of the following best describes the orientation of the Commercial Code of Ethiopia.

- ☐ a. Whoever you are, whatever you do, if you are doing anything for profit, surely, you are a trader
- ☐ b. Whoever you are, if you are engaged in certain acts of commerce, then you are a trader
- ☐ c. Even if you are engaged in certain acts of commerce, even if you are doing whatever you do for profit, you may not be a trader
- ☐ d. Whatever you do, if you are doing it for profit, then you are a trader

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Question 81

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Grave violations of human rights and International Humanitarian Law do not give rise to:

- ☐ a. individual criminal liability to the perpetrator(s)
- ☐ b. civil liability to the state concerned
- ☐ c. criminal liability of the state concerned
- ☐ d. individual civil liability to the perpetrator(s)

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Question 82

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A person who is bound by law to exercise supervision over a person on account of minority or of his mental or physical condition is said to have caused harm to the protected interests of another person when she fails to fulfill her duty and as a result the person under her supervision causes harm to the protected interest of others. Under the Ethiopian Civil Code, her extra-contractual liability falls within the domain of:

- ☐ a. Supervision failure
- ☐ b. Liability in the absence of fault
- ☐ c. Fault based liability
- ☐ d. Vicarious liability

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Question 83

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It is a type of tax whereby the taxpayer can easily pass the burden to another person.

- ☐ a. Indirect tax
- ☐ b. Withholding tax
- ☐ c. Direct tax
- ☐ d. Dividend tax

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Question 84

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One of the following is **false** about the effects of violations of essential conditions of marriage.

- ☐ a. Marriage concluded by a judicially interdicted person will be dissolved only on the application of the guardian of the judicially interdicted person.
- ☐ b. Marriage concluded by a judicially interdicted person will not be dissolved on the application of the judicially interdicted person himself.
- ☐ c. Marriage concluded by a woman under the age of eighteen years will not be dissolved if the age required by law for marriage is satisfied.
- ☐ d. Marriage concluded by a woman under the age of eighteen years will be dissolved on the application of any interested person.

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Question 85

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Identify which of the following **is not** a justifiable reason for disinheritance under Ethiopian law.

- ☐ a. conviction of murder of the deceased's wife by a beneficiary
- ☐ b. conviction of attempted murder or grievous harm on the deceased by a beneficiary
- ☐ c. Legitimacy or illegitimacy of the child of the deceased.
- ☐ d. conviction of murder of the deceased by a beneficiary

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Question 86

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Identify the **correct** statement about turnover tax.

- ☐ a. It is retained as an alternative to VAT for economic and equity reasons.
- ☐ b. Its application is limited to goods and services excluded from VAT.
- ☐ c. It applies flat (the same) tax rate for all goods and services under its domain
- ☐ d. It applies different tax rates for different goods and services under its domain

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Question 87

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Flag question

According to the succession law of Ethiopia, where a person dies intestate, the pool of legitimate heirs and the correct order for calling heirs is:

- ☐ a. Descendants, spouse, ascendants, and the State
- ☐ b. Descendants, ascendants, spouse and the State
- ☐ c. Descendants, ascendants, and the State
- ☐ d. Descendants, the State, spouse, ascendants, and spouse

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Question 89

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From the perspective of the victims' agency, **mechanisms for monitoring compliance** with human rights treaties can be positively appraised because they:

- ☐ a. allow individual complaint procedure
- ☐ b. employ inquiry procedures
- ☐ c. involve inter-state complaint procedure
- ☐ d. are purely based on self-reporting procedures of member states

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Question 88

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Based on the conditions and requirements set for their amendments, constitutions can be classified into two, namely ____.

- ☐ a. Codified and uncoded
- ☐ b. Rigid and flexible
- ☐ c. Federal and unitary
- ☐ d. Presidential and parliamentary

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Question 90

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Which one of the following does fit in the purpose of choosing the legal profession?

- ☐ a. Making livelihood.
- ☐ b. Attaining justice for the client by abusing the legal system.
- ☐ c. Winning every case before the court of law.
- ☐ d. Profit maximization.

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Question 91

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Which of the following best describes the relationship between an adopted child and her biological parents? The parental relationship:

- ☐ a. is not affected by the agreement of adoption.
- ☐ b. is to be determined by the terms of the adoption agreement.
- ☐ c. is to be determined having regard to the best interest of the child.
- ☐ d. ceases to exist as soon as an adoption agreement is concluded.

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Question 92

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In the absence of a will, who does not qualify as a legitimate heir under Ethiopian law?

- ☐ a. The State
- ☐ b. Spouse
- ☐ c. Ascendants
- ☐ d. Descendants

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Question 93

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Mr. A and Mr. B were old foes. One day, they met at a public road accidentally. Mr. A pulled his pistol out and threatened to kill Mr. B. Mr. B responded instantly by smashing Mr. A at his face. Mr. A fell down on his back and got serious injury on his back head. The public prosecutor instituted a criminal action against Mr. B for inflicting serious body injury on Mr. A. Which one the following defenses would you advise Mr. B to invoke as a justification?

- ☐ a. Lawful act
- ☐ b. Causation
- ☐ c. Self-defense
- ☐ d. Act of necessity

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Question 94

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What is the status of oath under the Civil Code of Ethiopia in relation to proof of contracts?

- ☐ a. It has been expressly made unlawful since the adoption of the FDRE Constitution
- ☐ b. Oath does not have any significance to prove a contract under Ethiopian law
- ☐ c. It is a useful tool to rebut the presumption of payments incorporated in the Ethiopian Civil Code
- ☐ d. It is used to prove contracts that need to be made in writing provided that the document establishing the contract was lost

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One of the following is different from the rest:

- ☐ a. Framing of issues
- ☐ b. Cross examination of witnesses
- ☐ c. Verifying the identity of the parties
- ☐ d. Deciding on preliminary objections

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Question 96

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One of the following is **not correct** about Joinder of actions.

- ☐ a. The plaintiff has the right to unite in the same action several causes of action, but if it appears to the Court that any such causes of action cannot be conveniently tried together it may order separate trials.
- ☐ b. More than one claim can be made in the same action.
- ☐ c. Joinder of actions is different from Joinder of parties.
- ☐ d. There is no overlap between joinder of parties and joinder of actions.

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Question 67

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Flag question

One of the following **is not** an exception to the ban on the use of interstate force set under the UN Charter.

- ☐ a. Humanitarian and pro-democratic intervention
- ☐ b. Individual self-defense against actual armed attack
- ☐ c. Collective self-defense against actual armed attack
- ☐ d. Collective enforcement measures authorized by the UN Security Council

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Question 68

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From the view point of fairness, which is the main criticism of VAT?

- ☐ a. It is not immune from tax evasion
- ☐ b. It is uneconomical
- ☐ c. It is regressive in nature
- ☐ d. It requires sophistication for its implementation

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One of the following are **is not** primarily governed by the new Commercial Code of Ethiopia.

- ☐ a. The rights of employees regarding the continuation of employment contracts when the business organization is transferred
- ☐ b. Relationships between members of business organizations
- ☐ c. Relationships between the business organization as an entity and members of business organizations
- ☐ d. Relationships between members of business organizations on the one hand and management (board directors & CEOs) of business organizations

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Question 70

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Inadmissibility of an evidence may not arise from:

- ☐ a. policy interest on the outcome of specific cases
- ☐ b. the need to ensuring fair trial and other legal restrictions set for policy reasons
- ☐ c. privileged relations such as spousal, professional and spiritual
- ☐ d. the irrelevancy of the evidence produced

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Question 71

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Which crime can be barred by period of limitation under the Criminal Law of Ethiopia?

- ☐ a. The crime of genocide
- ☐ b. The intentional killing of a public official
- ☐ c. The summary executions of civilians during war and peace time
- ☐ d. Crime against humanity

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Question 72

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It deals with the actual effects of the law upon various actors in a complex societal and environmental setting.

- ☐ a. Legal realism
- ☐ b. The sociological school of jurisprudence
- ☐ c. The historical School of jurisprudence
- ☐ d. The natural law school of jurisprudence

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Question 73

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Which of the following shows the **correct** list of primary sources of Public International Law?

- ☐ a. Treaties, international custom and general principles of law
- ☐ b. International conventions, case laws and international custom
- ☐ c. General principles of law, international conventions and case laws
- ☐ d. International custom, treaties and judicial decisions

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Question 76

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Flag question

If a law enacted by the federal government is challenged for contradicting with the Constitution of a Regional State, what would be the fate of that law in Ethiopia?

- ☐ a. It should be nullified for contradicting with a regional constitution
- ☐ b. It should be sustained provided the law is within regional domain
- ☐ c. It all depends on whether or not the said law is in concomitant with the federal Constitution
- ☐ d. It should be nullified provided that the subject matter of the dispute falls under federal domain

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Question 75

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Flag question

Identify a statement which **is not** consistent with the provisions of the Civil Code regarding the essential characteristics of wills.

- ☐ a. A will takes effect on the death of a testator
- ☐ b. A will deals only with property acquired before the date it was made
- ☐ c. A will must be made in prescribed form
- ☐ d. By making a Will, one is not prevented from disposing of his property *inter vivos*.

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Question 74

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Public international law broadly refers to:

- ☐ a. The body of rules and principles that govern the relationship between sovereign states.
- ☐ b. The body of case laws applied by international tribunals in specific cases.
- ☐ c. The body of rules and principles that govern the relationship between citizens of different sovereign states.
- ☐ d. The body of law governing political and diplomatic relation between friendly states.

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Question 79

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One of the following is the core of the definition of a trader according to the Commercial Code of Ethiopia.

- ☐ a. The nature of the activity a person is engaged in
- ☐ b. The nature of the personality of the person engaged in certain activities
- ☐ c. The profit motive
- ☐ d. The class to which the person engaged in certain activities

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Question 78

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It refers to particulars requiring proof in a specific case to which evidence must be directed.

- ☐ a. Admission
- ☐ b. Facts in issue
- ☐ c. Confessions
- ☐ d. Denials

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Question 77

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Flag question

One of the following is **not true** about the principle of duty of care.

- ☐ a. Children and people with mental disabilities are not required by the principle of duty of care to measure up to a reasonable man standard of care
- ☐ b. Children and people with mental disabilities are held to the same objective standard of a reasonable man standard regardless of their ability to conform to that standard
- ☐ c. The principle of duty of care places a tremendous burden on certain classes of injurers that exceeds their abilities
- ☐ d. The principle of duty of care is based on the assumption that classes of actors are capable of exercising the same level of care as the average reasonable man

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Question 41

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Flag question

Which of the following statements best explains the mandatory period of widowhood as provided in the family code(s)?

- ☐ a. A woman is under prohibition to remarry within the next one hundred and eighty days following the dissolution of her former marriage.
- ☐ b. The limitation protects the rights of children
- ☐ c. The limitation is designed to discriminate between the two sexes
- ☐ d. It limits the right of a female to conclude marriage at any time she wants.

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Question 44

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Flag question

For the Ethiopian civil code, a pre-emption is a:

- ☐ a. right of first purchase, should the right holder wish to buy.
- ☐ b. restriction on ownership.
- ☐ c. right in rem even if it is not related to immovable or movable things.
- ☐ d. right of first refusal, should the owner wish to sell.

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Question 48

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Flag question

All of the following **except** one are grounds for review of judgments by a court which gave the judgment.

- ☐ a. The discovery of important matters such as forgery, perjury subsequent to the judgment.
- ☐ b. The discovery of new evidence subsequent to the judgment which could have been discovered had the party applying for a review of a judgment exercised due diligence.
- ☐ c. The discovery of new evidence subsequent to the judgment which would have materially affected the substance of the judgment.
- ☐ d. The discovery of new piece of evidence subsequent to the judgment.

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Question 48

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All of the following **except** one are grounds for review of judgments by a court which gave the judgment.

- ☐ a. The discovery of important matters such as forgery, perjury subsequent to the judgment.
- ☐ b. The discovery of new evidence subsequent to the judgment which could have been discovered had the party applying for a review of a judgment exercised due diligence.
- ☐ c. The discovery of new evidence subsequent to the judgment which would have materially affected the substance of the judgment.
- ☐ d. The discovery of new piece of evidence subsequent to the judgment.

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Question 46

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Flag question

When an individual X has worked with or transformed an object A belonging to individual Y creating a new thing E, Which one of the following is necessarily false according to the rules of accession of the Ethiopian Civil Code?

- ☐ a. Individual X and individual Y become joint owners of the new thing E.
- ☐ b. The new thing E belongs to individual Y.
- ☐ c. The new thing E belongs to individual X.
- ☐ d. Who becomes the owner of the new thing E is dependent on the amount of labor supplied and the quality of the intention of the laborer.

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Question 45

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Flag question

Identify the odd one out vis-à-vis the Ethiopia Criminal Procedure Laws.

- ☐ a. Rights to counsel/legal assistance and to obtain a copy of the charge
- ☐ b. Rights to life and to property
- ☐ c. Right to be presumed innocent and the prohibition of self-incrimination
- ☐ d. Rights to speedy trial and to public trial

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Question 43

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Flag question

One of the following proposition falls within the scope of property law in Ethiopia.

- ☐ a. A who owns a car enters into a contract with a garage for the purpose of servicing the car.
- ☐ b. C who is B's neighbor turns on her CD player in the middle of the night and B complains about the noise.
- ☐ c. B negligently destroys A's car in a garage.
- ☐ d. A enters into a contract with a bank for the purpose of creating a bank account.

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Question 12

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One of the following is **false** about joinder of defendants.

- ☐ a. All persons against whom the right to any relief is alleged to exist may be joined as defendants, only if, every defendant is interested as to all the relief claimed in the suit against him.
- ☐ b. All persons may be joined as defendants against whom the right to any relief is alleged to exist whether jointly, severally or in the alternative.
- ☐ c. If a common question of law or fact must be involved, all defendants may be joined in one action as defendants, only if such joinder does not delay the trial of the action.
- ☐ d. If a claim against them must be in respect of the same transaction, or series of transactions, all defendants may be joined in one action as defendants.

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Question 10

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Which of the following is the most satisfying mode of extinction of obligations?

- ☐ a. Limitation of actions
- ☐ b. Set off
- ☐ c. Cancellation
- ☐ d. Performance

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Law (LLB)

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From the view point of the protection of human rights, the good news about the Universal Declaration of Human Rights is that it:

- ☐ a. is a political document with little legal significance to the protection of human rights
- ☐ b. has soft law status that provides non-binding policy guidance to the signatory states
- ☐ c. has no current use for it was substituted by other binding international human rights Covenants
- ☐ d. has already attained a customary international law status, having binding effect upon all states.

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Question 49

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Flag question

How do you rate the amendment requirement set in Article 105(1) of the **FDRE** Constitution with regard to the bill of rights specified in chapter three of the same from the point of view of flexibility and rigidity?

- ☐ a. It is moderately rigid because consensual amendment is still possible
- ☐ b. It is extremely flexible because it is simply requiring majority decision
- ☐ c. It is moderately flexible because amendment can be still barred by majority decision
- ☐ d. It is extremely rigid because it gives veto power to a State Council to bar amendment

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Question 47

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The following two competing principles of taxation are concerned on the optimal allocation of resources and fair distribution of income, respectively.

- ☐ a. Progressive and regressive principles
- ☐ b. End user pay and producer pay principles
- ☐ c. Efficiency and equity
- ☐ d. Equity and efficiency

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Question 50

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Flag question

If the law says that when a person is accused of a crime his/her responsibility is presumed. What does it mean?

- ☐ a. The public Prosecutor has the burden of proof to establish responsibility
- ☐ b. Responsibility is not subject to contestation
- ☐ c. Burden of proof to establish irresponsibility is shifted to the accused
- ☐ d. The presumption on responsibility is irrebutable

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Question 57

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Flag question

One of the following is not the main purpose of punishment under the FDRE Criminal Code.

- ☐ a. Reform/rehabilitation
- ☐ b. Deterrence
- ☐ c. Retribution
- ☐ d. Prevention

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Question 53

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Choose the chronological order that can explain best the general trend in the evolution of governments from the past to the recent.

- ☐ a. Constitutional monarchy - absolute monarchy - republican
- ☐ b. Absolute monarchy – Constitutional Monarchy – Republican
- ☐ c. Absolute monarchy- Republican - Constitutional monarchy
- ☐ d. Constitutional monarchy - Republican- Absolute monarchy

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Question 59

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It is a school of thought that believes in the existence of higher principles superior to laws made by man.

- ☐ a. Natural Law School
- ☐ b. Sociological School
- ☐ c. Legal Realism
- ☐ d. Legal Positivism

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Question 60

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Flag question

As per the Ethiopian Criminal Procedure Law, when is the defendant required to defend?

- ☐ a. After the court examined and weighed the evidences and got convinced that the case is sufficiently proved to warrant the conviction of the accused, unless rebutted
- ☐ b. After the court ordered the acquittal of the accused, following a careful and thorough examination and weighing of the evidences
- ☐ c. Right after the public prosecutor finished presenting his/her evidences
- ☐ d. Right after the defendant finished cross-examination of the prosecutor's witnesses

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Question 58

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Under the Federal Courts Proclamation No. 1234/2021, the Federal Supreme Court has appellate jurisdiction over all the following cases **except** decisions:

- ☐ a. rendered by Regional Supreme Court on state matters.
- ☐ b. rendered by Regional Supreme Court on federal matters in its first instance jurisdiction in exercising its delegation.
- ☐ c. of the Federal High Court rendered in its first instance jurisdiction.
- ☐ d. of the Federal High Court rendered in its appellate jurisdiction in variation of the decisions of the Federal First Instance Court.

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Law (LLB)

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Question 54

Not yet
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Flag question

Which of the following is not the subject matter of property?

- ☐ a. Promise of sale which is not related to immovable or movable things
- ☐ b. Debt
- ☐ c. Lease
- ☐ d. A right of pre-emption

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Question 52

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🚩 Flag question

One of the following **is not** an initial trigger or mover to the machinery of criminal justice.

- ☐ a. Police investigation
- ☐ b. Flagrant offences
- ☐ c. Complaint
- ☐ d. Accusation

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Question 51

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The constitutional right of the accused to presumption of innocence is:

- ☐ a. mandatory irrebuttable presumption
- ☐ b. shifts the burden of proof to the accused
- ☐ c. permissive presumption
- ☐ d. mandatory rebuttable presumption

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Question 55

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One of the following is a ground of a void marriage under the Ethiopian Family Law.

- ☐ a. Where it was concluded between the parties within the prohibited degrees of relationship.
- ☐ b. When one of the spouses willfully refuses to consummate the marriage.
- ☐ c. Where it has not been concluded because of incapacity of either party.
- ☐ d. Where there was no valid consent to the marriage.

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Question 56

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From the perspective of positivists, the main criticism of public international law is its:

- ☐ a. manifest enforcement loophole.
- ☐ b. highly centralized enforcement mechanisms.
- ☐ c. intrusive nature on state sovereignty.
- ☐ d. inflexibility and rigidity in application.

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Question 61

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In appropriate cases, Ethiopian courts can invoke international instruments ratified by Ethiopia. Because,:

- ☐ a. such laws have supremacy over national primary legislations.
- ☐ b. such laws are recognized under the FDRE Constitution as integral part of Ethiopian laws.
- ☐ c. International law has primacy over national legislations.
- ☐ d. they are equivalent with the FDRE Constitution in status.

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Question 8

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Flag question

Which of the following statements is **incorrect** about property law?

- ☐ a. It specifies objects or things over which property right may be exercised
- ☒ b. It classifies things and sets out governing rules accordingly
- ☐ c. It lays down rules on acquisition, utilization, protection, transfer, and loss of each type of property right
- ☐ d. It lays down types of legally recognized property rights in line with the dictates of distributive justice

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Law (LLB)

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Question 64

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Flag question

One of the following **is not** necessarily one of the primary goals of civil procedure law.

- ☐ a. Extra-legal social justice
- ☐ b. Decisional righteousness
- ☐ c. Speedy access to justice
- ☐ d. Predictability of decisions

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Question 62

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One of the following statements is **wrong** about a decisive mistake which relates to the legal nature of a contract.

- ☐ a. One party to a contract who intends to buy a house of the size of 400m² and, believing she is doing so, in reality signs a contract of sale of a house of the size of 200m².
- ☐ b. One party to a contract who intends to buy a house and, believing he is doing it, in reality signs a lease contract.
- ☐ c. One party to a contract signs a bill of exchange in the belief that she is confirming a statement of account.
- ☐ d. An illiterate man signs a paper which he believed to be an order for goods and it was really a promissory note.

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Question 65

Not yet
answered

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1.00

Flag question

Identify the **wrong** statement about moral dilemmas.

- ☐ a. They also include the sacrifice of some important moral values.
- ☐ b. They involve deciding not to decide.
- ☐ c. They include the situation where doing nothing has the moral status of doing something.
- ☐ d. They only encompass the situation of making difficult choice from the available competing values.

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Question 63

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One of the following is could not have been a major reason for the revision of the Commercial Code of Ethiopia.

- ☐ a. The need to re-orient the commercial code in line with the dictates of the free market.
- ☐ b. Striking a right balance between commercial interest and commercial justice.
- ☐ c. The need to tip the balance between commercial interest and commercial justice in favor of commercial justice by privileging the interests of the stakeholders over the interest of the business organizations.
- ☐ d. The dictates of globalization, international organizations and capital exporting nations.

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Question 66

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Find the exceptional statement about human rights.

- ☐ a. Human rights are culturally relative
- ☐ b. Human rights are equally applicable to all human being
- ☐ c. Human rights are universal
- ☐ d. Human rights impose corresponding duties on the state and its organs

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